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Judgment Sheet

IN THE LAHORE HIGH COURT

MULTAN BENCH MULTAN

JUDICIAL DEPARTMENT

Writ Petition No.855 of 2018

Ghous Bakhsh Vs. Government of Punjab, etc.

J U D G M E N T

Date of Hearing:	21.03.2022.
Petitioner by:	Mr. Saifullah Khan, Advocate.
Respondents by:	Mr. Muhammad Ayub Buzdar, Assistant Advocate General alongwith Mujahid Hussain, DSP.

Anwaar Hussain, J. Through the present constitutional petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (hereinafter “the **Constitution**”), the petitioner, who is father of deceased constable, namely, Muhammad Ejaz (hereinafter “the **deceased constable**”), is seeking setting aside of order dated 25.07.2017 passed by respondent No.2 and direction to respondents No.1 to 3 for grant of amount of Rupees 05-Millions and other benefits to the legal heirs of the deceased constable, in view of notification dated 30.05.2015 of Central Police Office Punjab, Lahore after declaring the deceased constable as ‘*Shaheed*’ in terms of Rule 12 of Punjab Police Department Rules, 1989 (hereinafter “the **Rules**”), since the deceased was murdered while performing his watch and ward duties.

2. Factual background of the matter, as narrated in the writ petition, is that the deceased constable was on duty on 30.10.2014, at Modal village Turkush Gard Rakh Fazal Pur, District Rajanpur and was murdered by unknown accused by firearms at about “*Isha vela*” while performing his duty and in this regard case bearing FIR No.641/14, dated 31.10.2014 under Section 302/34, Pakistan Penal

Code, 1860 (hereinafter “the **PPC**”) was registered; and that the deceased constable was not declared as ‘*Shaheed*’ by the Police Department as a result whereof the petitioner filed an application upon which the matter was referred to Additional Inspector General of Police, Punjab Welfare and Finance, Lahore who, through letter No.10252/W-III, dated 12.05.2016, rejected the case of the petitioner’s son. Feeling aggrieved, the petitioner filed W.P. No.9186/16 before this Court, which was disposed of, *vide* order dated 06.10.2016, with a direction to Inspector General of Police, Punjab to consider the case of the petitioner in the light of recommendation made by the District Police Officer, Rajanpur, sympathetically, however, said order was not complied with, which resulted into filing of Crl. Org. No.1260-w/2016 and same was also disposed of *vide* order dated 18.04.2017 with a direction to Inspector General of Police, Punjab to comply with order dated 06.10.2016 passed in W.P. No.9186/2016, but when the said respondent again failed to comply with the order of this Court, the petitioner filed another Crl. Org. No.1038-w/2017 wherein notices were issued to the respondents and during the proceedings, it came into the knowledge of the petitioner that the case of the petitioner was rejected by respondent No.2, *vide* impugned order dated 25.07.2017.

3. Notices were issued and report and parawise comments have been filed by the respondents wherein, *inter alia*, it has been contended that during the course of investigation of the case bearing FIR No.641 dated 31.10.2014, under Section 302/34 PPC, one Muhammad Yousaf along with Nasrullah Hasnain and few others, were nominated as accused for committing murder of the deceased constable but later on they were declared as innocent where after investigation of the case was entrusted to DSP/RIB, who also concluded that unknown accused persons killed the deceased constable for reasons best known to them. The case of the deceased constable was considered by the Compensation Award Committee (hereinafter “the **Committee**”) in its meetings held on 04.05.2016 &

06.05.2016 and the Committee observed that the deceased constable cannot be declared as '*Shaheed*' as the incident seems to be a result of enmity, which did not compel the Committee to declare the deceased as '*Shaheed*'. When the matter was re-considered by the Committee in its meeting held on 07.11.2016, upon direction of this Court, a progress report was furnished by the District Police Officer, Rajanpur stating that on fateful night the deceased constable was found continuously in contact with Mst. Saba Kazmi and Mst. Sumera Naz while insisting upon them to establish relation with him otherwise he would kill himself, however, Mst. Sumera Naz as well as her relatives i.e., Mohammad Yousaf, Nasrullah, Hasnain, etc., were investigated but they were found innocent. The investigation of the case was further entrusted to DSP/RIB, D.G. Khan and on the request of complainant, Abdul Khaliq, Muhammad Nawaz and Dr. Muhammad Akram were also investigated. During investigation, the above named accused persons were again found innocent and District Police Officer, Rajanpur concluded that deceased constable was neither killed by terrorists nor during police encounter but was murdered and most probably due to his illicit relations with the said ladies, therefore, the deceased constable was not declared as '*Shaheed*', however, his family is entitled for monetary benefits of 'death in service' only, to the tune of Rs.980,213/-.

4. Learned counsel for the petitioner submits that the deceased constable was murdered during duty time while performing watch and ward duties and department has itself declared the persons accused of the enmity as innocent, therefore, the deceased constable was entitled to be declared as '*Shaheed*' under the policy, however, through impugned order dated 25.07.2017 passed by respondent No.2, the legal heirs of the deceased constable including the petitioner have been deprived of their lawful rights and hence, the impugned order is liable to be set aside and the legal heirs of deceased constable be declared entitled for grant of amount of Rupees 05-Millions and other benefits in view of notification

No.7641/W-II dated 30.05.2015 of Central Police Office Punjab, Lahore.

5. Conversely, learned Law Officer has reiterated the stance as taken in the report and parawise comments and prayed for dismissal of the writ petition.

6. Arguments heard. Record perused.

7. At the outset, it is felt imperative to observe that the personnel of security agencies tasked with the maintenance of peace in the society are involved in a sacrosanct as well as onerous duty with the omnipresent risk to their lives. Therefore, if higher level of discipline in the law enforcement agencies and their personnel lies at the one end of the spectrum, the appreciation and compensation for their services certainly lies at the other end. While the former helps to maintain discipline in the law enforcement agencies, the latter works as a necessary impetus to the personnel to perform their duties with full zeal and zest and be watchful. This case involves the latter where the deceased constable who is son of the petitioner, while admittedly on watch and ward duty, was brutally done to death by unknown persons on the fateful day i.e., 31.10.2014. Ever since then, the petitioner has been roaming from pillar to post and dealt with bureaucratic apathy, which moves up another scale given the fact that the deceased constable belonged to them, to say the least. The long ordeal of the petitioner in getting his son declared '*Shaheed*' without seeing any daylight so far can be seen from the facts of the case detail whereof has been given above.

8. Be that as it may, this Court would venture to see through the legality and reasonability of the impugned order. As reproduced above, the Committee in its meetings held on 04.05.2016 and 06.05.2016 refused to declare the son of the petitioner in the most unreasonable and bizarre manner, which is bereft of any application of mind. It flies in the face of prudence that the incident has been

stated to be result of enmity “as multiple weapons were used, hence simply a case of murder was registered”. Subsequently, Writ Petition No. 9186/2016 was filed wherein direction was issued to Provincial Police Officer, Punjab (IGP) to consider the matter sympathetically. However, the matter was again placed before the Committee which did not trace its step back to reassess the matter in accordance with law rather preferred to follow the trodden path of its earlier recommendations, which ended up in impugned order dated 25.07.2017, perusal whereof reveals that respondent No.2/IGP has rejected the prayer of the petitioner without any cogent reason. The only reasoning prevailed upon respondent No.2/IGP is that *“DPO, Rajanpur has concluded that the late constable Muhammad Ejaz No. 1653 was neither killed by terrorists nor during police encounter. He was murdered and most probably due to his illicit relations with above mentioned ladies”*. It is astonishing that on one hand, the investigation carried out by investigative apparatus of Police Department declared the accused ladies and their relatives innocent in the FIR lodged on account of murder of the deceased constable and on the other hand, the respondent/IGP is obliquely and indirectly upending the said investigation by again hanging the proverbial albatross around the neck of the said ladies and their relatives being quite insensitive to the social consequences of such observation as well as stigmatizing the personality of the deceased constable who admittedly was on watch and ward duty. It is imperative to note that no material has been discussed which propelled the respondent IGP to the conclusion he has drawn. Rather, the conclusion has been reached on the basis of self-harboured probability of death on account of enmity, which cannot be countenanced under the law. The impugned order seems to have been passed by toeing the lines of earlier decision of the Committee without application of independent mind.

9. Here it is imperative to note that the learned Law Officer was specifically asked as to whether any person was charged with the

murder of the deceased constable and what was the outcome of any judicial proceedings in this regard. This Court was apprised that Mst. Sumera Naz, Mohammad Yousaf, Nasrullah, Hasnain, etc., were charged with the murder of deceased constable upon supplementary statement of the complainant and after complete trial, the learned trial court has disbelieved the motive behind the occurrence and have acquitted the said accused persons *vide* judgment dated 06.12.2018, which admittedly has not been challenged. This aspect in itself indicates that the attribution of death of the petitioner’s son to some personal enmity is devoid of any merits and has been used to merely deny the petitioner’s son the status of ‘*Shaheed*’, under Rule 12 of the Rules.

10. Even otherwise, there is a clear and an unequivocal statutory conferment of being declared as ‘*Shaheed*’ upon an official of the Police Department by virtue of Rule 12 of the Rules as amended from time to time which as on 30.05.2015 reads as under:

“AMENDMENTS IN RULE-12:

“12. The amount of award shall be as hereinafter indicated in ‘As Amended’ Column:-

a) SHAHEED CATEGORY:-

(12-a) of Rules 1989/2004 /2008	Officers/ Officials killed in encounters including death in bomb blasts, riots, watch and ward duties or terrorist activities but not including death in accident, shall be Rs.20,00,000/- (Rupees Twenty lacs) in each case.	Officers/officials killed in encounters including death in bomb blasts, riots, watch and ward duties or terrorist activities but not including death in accident, shall be awarded compensation as under:			
		<u>Ranks of Shuhada</u>	<u>Amount in Rupees</u>	<u>Price of house</u>	<u>Total</u>
		Constable – Head Constable	Rs.04.00 Million	Rs.01.00 Million	Rs.5,000,000/- (Five Million only).
		ASI-S.I	Rs.05.00 Million	Rs.02.00 Million	Rs.7,000,000/- (Seven Million Only).

(Emphasis supplied)

Above quoted Rule has been couched in a simple and plain language and being free of any ambiguity and makes it clear that if the

official/officer of police is killed in encounters including death in bomb blasts, riots, watch and ward duties or terrorist activities but not including death in accident, he is entitled to be declared as 'Shaheed' with all the benefits attached to such status. In instant case, the petitioner's son was admittedly on watch and ward duty when murdered while being in uniform which fact has been admitted by Mr. Mujahid Hussain, DSP who is in attendance today. This Court in case reported as "Firdous Shafiq v. Inspector of Police" (2020 PLC (C.S) 505) has already held that if a police official dies during the performance of watch and ward duties and death does not fall under the ambit of an accident, the said official is entitled to grant of compensation in the category of 'Shaheed'. Perusal of record clearly shows that death of deceased constable was not on account of accident, therefore, the denial of according status of 'Shaheed' to the petitioner's son *vide* impugned order is not sustainable as the said order fails to take into account the spirit of the law, which is to confer such status on police officers/officials who are killed in the performance of their functions in such eventualities as envisaged by Rule 12 that includes the loss of life during watch and ward duty. It does not exclude the applicability of the said Rule in cases where some officer/official is killed out of enmity. The self-assumed insertion/interpolation of such eventuality like personal enmity to deprive the petitioner's son of such status is bereft of legal underpinnings. It is settled principle of law that addition or deletion of word in a statute is not justified unless, for the interpretation thereof, the principle of reading in and reading down may be pressed. In a case like one in hand where the intent and purpose of competent authority was clear and unambiguous, there was no room to read something into Rule 12 of the Rules. Case reported as "Province of Khyber Pakhtunkhawa through Chief Secretary, Peshawar and others v. Farastullah and others" (2020 SCMR 1629) is referred in this regard. Even otherwise, no material is available or has been pointed out to support such contention that the death was caused out

of enmity as has been premised to refuse the plea of the petitioner more so when the persons with whom possible enmity has been suspected, at a belated stage through some supplementary statement, were declared innocent by the Police Department itself. It is imperative to note that even if it is assumed, for the sake of argument, that some enmity did exist between the deceased constable and the accused persons, it does not affect the admitted position that the deceased constable was performing watch and ward duty without allegation of any negligence in discharge thereof.

11. In view of the above discussion, impugned order dated 25.07.2017 is set aside and the respondents are directed to process the case of the petitioner for declaration as '*Shaheed*' afresh, in view of the observations made hereinabove in order to alleviate the ordeal and sufferings of the petitioner being father of the deceased constable who was on watch and ward duties at the time of his death. Needful should be done within a period of thirty days from the receipt of certified copy of this judgment under intimation to Deputy Registrar (Judicial) of this Court.

12. **Disposed of** in above terms.

(ANWAAR HUSSAIN)
JUDGE

APPROVED FOR REPORTING

JUDGE

*Maqsood**